

9	30-2024-01382082 Jiang vs. Reynolds	The motion by plaintiff Qi Jiang to set aside the dismissal entered on 10/2/24 is GRANTED. CCP §473(b) states in pertinent part as follows, “(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” Here, the plaintiff’s complaint was dismissed when plaintiff failed to appear for a hearing on an OSC re Dismissal for failure to serve the defendants on 10/2/24. Counsel filed the instant motion on 11/12/24 and it is supported by a declaration of counsel attesting to his mistake which led to his failure to appear at the 10/2/24 hearing. As plaintiff has met the requirements under CCP §473(b), the motion is granted. The dismissal is therefore set aside and the case restored to the active list. Further, the court sets a Case Management Conference for 5/21/25 at 09:00 AM. If service of process is not completed by this date, the court may set a renewed order to show cause regarding dismissal for failure to proceed. Plaintiff is ordered to give notice of this ruling.
10	30-2024-01390588 Hart vs. NSMG Shared Services LLC	Off Calendar

11	30-2024-01395894 Librush vs. General Motors, LLC	Off Calendar
12	30-2024-01396064 Mesbah vs. ALHV, LLC	1) Motion to Deem ALHV's Requests for Admission Responses as Admitted Plaintiff Ezat Mesbah, by and through her Successor in Interest Alan Safari's ("Plaintiff") unopposed Motion to Deem defendant ALHV, LLC dba Villa Valencia Healthcare Center's ("ALHV") responses to Requests for Admission, Set One ("RFA") as admitted is DENIED as ALHV served responses to the RFA's on March 6, 2025 (See Declaration of Jessica Munoz, Exhibit D). Where a compliant RFA response is in place prior to the hearing, the sanction of deeming the RFAs admitted is unavailable. Civ. Proc. Code § 2033.280(c). However, monetary sanctions for the expense of moving for these responses may still be obtained and, here, Plaintiff requests \$2,430 in monetary sanctions against ALHV and its counsel of record on this motion. Counsel's billing rate is a reasonable \$395/hr. The hours requested are high given no opposition or reply brief was filed on this motion, and that requested time is deducted. The appearance time is also split evenly between the four motions. The total monetary sanctions against ALHV and its counsel of record on this motion is: \$395/hr. x 2 hrs. + \$60 fee = \$850 2) Motion to Compel Aspen's Responses to Form Interrogatories Plaintiff's Motion to Compel defendant Aspen Skilled Healthcare, Inc.'s ("Aspen") responses to Form Interrogatories, Set One ("FROG") is GRANTED The proof of service ("POS") of the FAC indicates that "FROG – General" were served on Aspen. (ROA 34.) Although Aspen argues there is no proof the FROG was served on Aspen and subsequently that the "corrected" POS does not prove service on Aspen, the original POS <u>does</u> state FROG were served on Aspen. Additionally, defense counsel appears to concede Aspen was served with the discovery requests specifically to Aspen and not simply as to ALHV. (Opposition